



File No.: EXP202303077

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On March 7, 2023, a complaint was filed with the Spanish Agency for Data Protection against TWITTER PROFILE HOLDER ***USER.1. The reasons for the complaint are as follows:

On the Twitter profile ***USER.1, without the consent of the affected person, a video has been published in which the individual is seen performing oral sex.

A screenshot of the Twitter profile ***USER.1 with the reported content is provided.

SECOND: On March 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following details:

On March 8, 2023, an email was sent to Twitter's DPO (dpo@twitter.com) with the following content:

"Dear Twitter Data Protection Officer:

On March 7, 2023, a complaint was received in this Spanish Data Protection Agency regarding the illegal publication, without the consent of the affected person, of a sexual video on Twitter profile ***USER.1 (...). From this Agency, we have verified that the profile is restricted and we cannot obtain the URL of the Tweet that broadcasts the video; however, we provide a screenshot that accredits and references the illegal publication made from the profile, which publishes the video next to the text "****SUBJECT.1". We request through this means the removal of the content published in the Tweet referred to in the attached screenshot.

Best regards"

Translation:

"Estimado Delegado de Protección de Datos de Twitter:

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On March 7, 2023, a complaint was received in this Spanish Data Protection Agency regarding the publication without the consent of the affected person of a sexual video on Twitter profile ***USER.1 on the past (...). From this Agency, we have verified that the profile is restricted and we cannot obtain the URL of the Tweet that publishes the video; however, we have a screenshot that accredits and references the illegal publication made from the cited profile, where a video is published next to the text "****SUBJECT.1". We request through this means the removal of the content published in the Tweet referred to in the attached screenshot.

Best regards"

On the same date, March 8, 2023, a response was received to the previous email from Twitter's DPO (dpo@twitter.com) with the following content:

"RE: Request for collaboration in the removal of content

Dear Mr. CCC,

We write in response to your correspondence of March 8, 2023.

As you know, Twitter operates a global online platform aimed at fostering public conversation.

Specifically, people around the world use Twitter to engage in conversations about what is happening

globally and to find relevant information and news for them, which includes, among others, politics and protests. In fact, many people who use our services share information of public interest, and as a result, the general public benefits, as it provides access to information that would otherwise be difficult to obtain.

However, we offer individuals a variety of ways to report any concerns they may have. To the extent that the reported content violates Twitter's Terms of Service (<https://twitter.com/tos>), Twitter's Privacy Policy (<https://twitter.com/en/privacy>), or Twitter Rules (<https://support.twitter.com/articles/18311>), we take appropriate action.

Please note that the Tweet referenced in your letter was previously removed on March 7, 2023, and is no longer available on the platform.

We remain at your disposal for any additional information.

Sincerely,

Office of Data Protection

Twitter International Unlimited Company”

On March 23, 2023, a new letter was received from the complainant with the following content:

“Good morning, on the 7th I filed a complaint that was admitted for processing. I would like to know if there is any news. I am surprised to see that the reported individual still has their Twitter account active, likely committing crime after crime, exposing...

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people in their privacy and uploading stolen videos, that their followers are growing and they continue to act with impunity on Twitter. Can that account be closed? Thank you.”

On March 28, 2023, a response was sent to the complainant providing the following information:

“As a continuation of the actions initiated following the receipt of the request for the removal of the content available on the website reported to this Agency, we inform you that the indicated content has been removed and is no longer accessible at that address. This is communicated for your information.”

On March 29, 2023, a request for information was made to the intermediary service provider TWITTER INTERNATIONAL UNLIMITED COMPANY, requesting the IP address of the Twitter user ***USER.1 on the date of the upload of the reported video. This request is made in order to continue with the investigative actions and to identify the person responsible for the publication of said content.

On the same date, March 29, 2023, an email was sent to Twitter's DPO (dpo@twitter.com) informing them of the recent request for information made by this Agency via international certified mail. The content of this informative email is:

“Dear DPO:

In relation to the investigation opened in this Agency regarding the unlawful publication of the video referenced in the thread of this email, I inform you that a request has recently been sent to Twitter International (via international certified mail) requesting information to continue with our investigative activity in order to identify the person responsible for the publication.

This is for your information,

Best regards.”

On April 17, 2023, a response was received from TWITTER INTERNATIONAL UNLIMITED COMPANY to our previous request, the content of this response is as follows:

“Dear CCC,

Thank you for contacting us.

According to our Privacy Policy, Twitter does not disclose account information unless required by a valid legal process. If you are working with the police, they will be able to assist you with the proper legal process to obtain such information. If Twitter is contacted directly by the police, we can work with them and provide assistance for their investigation. You may refer law enforcement officials to our guidelines for law enforcement compliance.

Visit the Twitter Help Center for more information.

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Sincerely,
Office of Data Protection
Twitter International Unlimited Company”
LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures.”

II

Conditions for Consent

Regarding the conditions for consent, Article 7 of the GDPR provides:

“1. When processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration that constitutes a breach of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.

4. In assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data.”

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processing of personal data that is not necessary for the execution of said contract.”

III

Legitimacy for processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore the subject of this Regulation.

Article 4.2 of the GDPR defines "processing" as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction.”

Including images that identify or make a person identifiable, as well as their name, in published videos

constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to the complaint, the usual legitimizing ground is generally consent. It is the person who uploads the personal data and the images that can be viewed without any limitation who must demonstrate that they have that consent.

In order for this processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

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IV

Conclusion

In order to identify the person or persons who were publishing the images, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

“1. Before adopting the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing involving mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed twelve months from the date of the admission decision or from the date of the decision to initiate when the Spanish Data Protection Agency acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

After conducting the investigations mentioned in the Facts, the following has been concluded:

At the time the complaint was filed, the video subject to the complaint was published on the reported Twitter account. On March 8, 2023, the removal of the reported content was confirmed.

After requesting information from TWITTER INTERNATIONAL COMPANY regarding the IP address of the user responsible for the publication, this company indicated the following: “According to our Privacy Policy, Twitter does not disclose account information unless required by a valid legal process. If you are working with the police, they can assist you with the appropriate and correct legal process to obtain such information.” Consequently, it is not possible to identify the person responsible for the publication. Thus, since it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been stated, by the Director of the Spanish Data Protection

Agency, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the complainant.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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